

Texas Tenant Handbook

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Texas law generally favors landlords, but tenants still have important rights under the Texas Property Code. Understanding these rights can help you avoid common pitfalls and respond effectively to housing problems.

Unlike some states, Texas does not have rent control. Landlords may increase rent by any amount, provided they give proper notice—typically 30 days for month-to-month tenancies. However, rent increases cannot be retaliatory or discriminatory. If your landlord raises your rent shortly after you complained about unsafe conditions, you may have grounds to challenge it.

Security deposits are not capped by state law, but landlords must return them within 30 days after you move out if you provided a forwarding address. Deductions must be for actual damages beyond normal wear and tear. While landlords are not required to provide an itemized list, many do so to avoid disputes. Keep photos of your unit before moving out to protect yourself.

Landlords in Texas must maintain the rental unit in a condition that complies with local health and safety codes. This includes working locks, functioning smoke detectors, and operable heating and cooling systems during extreme weather. If your landlord fails to make necessary repairs, you may have the right to repair and deduct (up to one month's rent) or terminate the lease—but only after giving written notice and allowing a reasonable time (usually 7 days for urgent issues, 30 for non-urgent).

Evictions in Texas follow a strict process. If you miss rent, your landlord must give you a 3-day “Notice to Vacate.” If you don’t pay or move out, they can file an eviction lawsuit (forcible entry and detainer). You have the right to appear in court and present your side. Never ignore court papers—doing so results in automatic eviction. Self-help evictions (changing locks, shutting off utilities) are illegal.

Lease terms matter. Texas allows landlords to include clauses like automatic renewal or late fees, but these must be clearly stated. Watch for “waiver of repairs” clauses—they are unenforceable if they remove the landlord’s duty to maintain habitability.

For help, contact Texas RioGrande Legal Aid, Lone Star Legal Aid, or the Texas Attorney General’s Consumer Protection Division. Free legal clinics are available in most major cities.